



**ABB Inc.**

**Robotics**



**Prepared for:**

**H2I Group**

**ABB IRB1200 Welding Function Package**

**Q25-7594426-1**

**May 6, 2025**

**Confidential Information**

*The information contained in this Proposal is considered to be of a confidential and proprietary nature, the rights to which belong to ABB Inc. (ABB) and are protected under the copyright and trade secret laws. This information is being furnished to the Purchaser to enable the Purchaser to evaluate the Proposal. If a contract is awarded to ABB based on this Proposal, then this information is to be included in whole or in part in the Contract. Neither this Proposal nor any information contained therein, nor any proprietary information furnished pursuant thereto, shall be disclosed to others or used for any purpose other than that set forth above, without the prior written approval of ABB INC. GENERAL TERMS AND CONDITIONS OF SALE (2022-03 U.S. – Robotics Business Area).*

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May 6, 2025

Phillip Papadantonakis  
H2I Group  
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Minneapolis, Minnesota 55413  
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Reference: ABB IRB1200 Welding Function Package

Proposal Number: Q25-7594426-1

Thank you for contacting ABB for your automation needs. We are pleased to have the opportunity to provide you with this proposal regarding the purchase of ABB robotic equipment. With over 500,000 robots installed worldwide, ABB is committed to delivering quality robot products, software and solutions designed to meet the most demanding robot automation requirements.

ABB wants you to know that your business is very important to us, and we have made every effort to ensure that this offer is complete, competitive, and accurate.

ABB Robotics offers distinct products and advantages. Specifically, ABB makes our own positioners and will perform integration with the robots rather than sourcing from 3<sup>rd</sup> party companies, we have the longest mean time between failure of any robot in the industry and with more than 300 dedicated personnel ABB has best-in-class service footprint to further ensure machine up time. All of this underscores ABB's commitment to superior system solutions for our customers.

If you have any further questions or comments after reviewing this information, please contact me at the number or email listed below.

Sincerely,

Conner R. Gilles  
Territory Sales Manager  
ABB Inc.  
Mobile: (312) 339-2416  
E-Mail: conner.r.gilles@us.abb.com

MINKD



## Notice of Proposal

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**Delivery:**

Run-off of the cell at ABB, will be **12** weeks after receipt of a written purchase order and order acknowledgement by ABB.

**Cell Utilities, Provided by others:**

| Qty. | Utility      | Type              | For                  | Value and Unit of measure | Notes                          |
|------|--------------|-------------------|----------------------|---------------------------|--------------------------------|
| 1    | Power        | 480 VAC 3 Phase   | Robot Controller     | 25 Amps                   |                                |
| 1    | Power        | 480 VAC 3 Phase   | Welding Power Source | 60 Amps Typical.          | See manufactures specification |
| 1    | Welding Wire | Per Process       | Welding Power Source |                           | See manufactures specification |
| 1    | Gas          | Welding Shielding | Welding Shielding    | Per Welding Process       |                                |

**Proposed Equipment:**

| Item | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | Picture                                                                                                                                                                                                                      |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1.   | <p><b>IRB 1200-5kg /0.9m For Arc Welding SN IRB1200-801354:</b></p> <p>Includes the following hardware and software options:</p> <p>57-1 Cabinet ABB standard</p> <p>94-1 Conn. of Parallel Comm. 7m</p> <p>209-202 Manipulator color ABB Graphite White std</p> <p>210-2 Manipulator cable – Length 7m</p> <p>213-1 Safety Lamp</p> <p>283-41 Product IRB 1200</p> <p>287-4 Protection Standard</p> <p>334-1 Signs on manipulator ABB</p> <p>429-1 Underwriters Laboratory UL/CSA</p> <p>431-1 Connector kits Upper arm</p> <p>435-122 IRB 1200-5/0.9</p> <p>438-2 Warranty Standard</p> <p>545-1 System test</p> <p>608-1 World Zones</p> <p>611-1 Path Recovery</p> <p>613-1 Collision Detection</p> <p>616-1 PC Interface</p> <p>623-1 Multitasking</p> <p>685-2 Robotware RW 6</p> <p>700-3 Controller Single cabinet</p> <p>701-1 FlexPendant 10 m</p> <p>708-1 Room temperature Max 45 C</p> <p>727-1 24V 8Amps</p> <p>731-1 Safety interface Safety internal conn.</p> <p>733-1 Operator's Panel on cabinet</p> <p>735-2 Operating mode selector Key switch, 2 modes</p> <p>736-2 Service outlet Service outlet 120V</p> <p>737-1 Status LEDs at front</p> <p>741-1 Connector cover</p> <p>742-1 Mains switch Rotary switch</p> <p>744-1 Door interlock</p> <p>752-1 Mains connection Cable gland</p> <p>764-2 Cooling air filter Moist dust filter</p> <p>769-4 Mains voltage 3x480V</p> <p>803-1 Media &amp; Communication Parallel &amp; Air</p> <p>840-1 Fieldbus adapters</p> <p>841-1 EtherNet/IP#</p> <p>941-1 Ethernet switch</p> <p>970-1 RS232 Serial Port</p> <p>1541-1 Base Dig. 16In/16Out Qty = 1</p> <p>633-4 RW Arc: Arc 6</p> <p>652-1 BullsEye: BullsEye</p> <p>657-1 SmarTac: SmarTac I/O version</p> | <p><b>IRB 1200</b></p>  <p><b>IRC5 Controller</b></p>  |

| Item | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Picture                                                                                                                                                                                                                 |
|------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 2.   | <b>IRB 1200-5kg /0.9m SN IRB1200-801356:</b><br>Includes the following hardware and software options:<br>57-1 Cabinet ABB standard<br>94-1 Conn. of Parallel Comm. 7m<br>209-202 Manipulator color ABB Graphite White std<br>210-2 Manipulator cable – Length 7m<br>213-1 Safety Lamp<br>283-41 Product IRB 1200<br>287-4 Protection Standard<br>334-1 Signs on manipulator ABB<br>429-1 Underwriters LaboratoryUL/CSA<br>431-1 Connector kits Upper arm<br>435-122 IRB 1200-5/0.9<br>438-2 Warranty Standard<br>545-1 System test<br>608-1 World Zones<br>611-1 Path Recovery<br>613-1 Collision Detection<br>616-1 PC Interface<br>623-1 Multitasking<br>685-2 Robotware RW 6<br>700-3 Controller Single cabinet<br>701-1 FlexPendant 10 m<br>708-1 Room temperature Max 45 C<br>727-1 24V 8Amps<br>731-1 Safety interface Safety internal conn.<br>733-1 Operator's Panel on cabinet<br>735-2 Operating mode selector Key switch, 2 modes<br>736-2 Service outlet Service outlet 120V<br>737-1 Status LEDs at front<br>741-1 Connector cover<br>742-1 Mains switch Rotary switch<br>744-1 Door interlock<br>752-1 Mains connection Cable gland<br>764-2 Cooling air filter Moist dust filter<br>769-4 Mains voltage 3x480V<br>803-1 Media & Communication Parallel & Air<br>840-1 Fieldbus adapters<br>841-1 EtherNet/IP#<br>941-1 Ethernet switch<br>970-1 RS232 Serial Port<br>1541-1 Base Dig. 16In/16Out Qty = 1 | <b>IRB 1200</b><br><br><b>IRC5 Controller</b><br> |

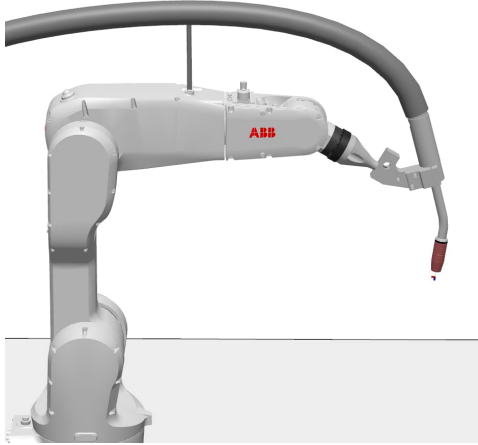


## Proposed Optional Welding Equipment:

### Item 2: Miller Auto-Continuum 350 Air-Cooled Welding Package:

| Item | Qty.       | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Picture                                                                                                                                                                                                                                                                                                                               |    |             |   |        |                     |   |          |                                    |    |          |                        |   |          |                       |    |          |                           |    |          |                           |   |           |                       |   |            |                      |                                                                                                           |
|------|------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----|-------------|---|--------|---------------------|---|----------|------------------------------------|----|----------|------------------------|---|----------|-----------------------|----|----------|---------------------------|----|----------|---------------------------|---|-----------|-----------------------|---|------------|----------------------|-----------------------------------------------------------------------------------------------------------|
| A.   | 1          | <p><b>Miller Auto-Continuum 350 Digital Welding Package:</b><br/>Advanced MIG processes:<br/>Accu-Pulse® pulsed MIG (GMAW-P), Versa-Pulse™, RMD®, MIG (GMAW),<br/>High-deposition MIG (GMAW), Flux-cored (FCAW)<br/><b>Rated Output</b><br/>350: 350 A at 100% duty cycle<br/><b>Output Range</b><br/>350: 20–400 A, 10–44 V<br/><b>Dimensions:</b> H: 27.19 in. (691 mm) (including lift eye), W: 17.5 in. (444 mm), D: 28.22 in. (717 mm), H: 27.19 in. (691 mm) (including lift eye)<br/>Net Weight; 130 lb. (59.4 kg)<br/><b>Auto-Line™ power management technology</b> allows for any input voltage hook-up (230–575 V) with no manual linking, providing convenience in any job setting. Eliminates weld defects caused by dirty or unreliable power.</p> <p><b>Including:</b></p> <ul style="list-style-type: none"><li>• ABB PN 907656 350 Power Supply</li><li>• ABB PN 301207 Wire Drive Left Hand</li><li>• ABB PN 263368-015 Cable 15' for Wire Drive</li><li>• ABB PN 2014788 for 0.035 Drive Rolls or 2014790 for .045 Drive Rolls</li><li>• ABB PN 223930 E-Stop Connection Cable 30 Ft.</li></ul> | <p><b>Power Supply</b></p>  <p><b>Wire Feeder</b></p>  <p><b>Cables</b></p>  |    |             |   |        |                     |   |          |                                    |    |          |                        |   |          |                       |    |          |                           |    |          |                           |   |           |                       |   |            |                      |                                                                                                           |
| B.   | 1          | <p><b>Welding Torch:</b><br/>Includes:</p> <ul style="list-style-type: none"><li>• PN 500R-22WB-10M - 500a A/C Torch, Miller Pin with Wire brake.</li><li>• PN 500R-22-10M - 500a A/C Torch, Miller Pin with <b>NO</b> Wire brake.</li></ul> <table border="1"><thead><tr><th>Qty</th><th>PN</th><th>Description</th></tr></thead><tbody><tr><td>1</td><td>AS-B-A</td><td>SOLID MOUNT ADAPTOR</td></tr><tr><td>1</td><td>AS-250-A</td><td>INSULATING DISC FOR ABB COBOT UNIT</td></tr><tr><td>10</td><td>75001004</td><td>INSULATING WASHER, 260</td></tr><tr><td>5</td><td>75004033</td><td>GAS DIFFUSER, STD, M6</td></tr><tr><td>10</td><td>75045014</td><td>CONTACT TIP, .045 / 1.2MM</td></tr><tr><td>10</td><td>75045011</td><td>CONTACT TIP, .035 / .09MM</td></tr><tr><td>2</td><td>75010228T</td><td>LINER, 10', .035-.045</td></tr><tr><td>2</td><td>75146202-I</td><td>NOZZLE, 9/16 CONICAL</td></tr></tbody></table>                                                                                                                                                                                  | Qty                                                                                                                                                                                                                                                                                                                                   | PN | Description | 1 | AS-B-A | SOLID MOUNT ADAPTOR | 1 | AS-250-A | INSULATING DISC FOR ABB COBOT UNIT | 10 | 75001004 | INSULATING WASHER, 260 | 5 | 75004033 | GAS DIFFUSER, STD, M6 | 10 | 75045014 | CONTACT TIP, .045 / 1.2MM | 10 | 75045011 | CONTACT TIP, .035 / .09MM | 2 | 75010228T | LINER, 10', .035-.045 | 2 | 75146202-I | NOZZLE, 9/16 CONICAL | <p><b>Torch</b></p>  |
| Qty  | PN         | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                       |    |             |   |        |                     |   |          |                                    |    |          |                        |   |          |                       |    |          |                           |    |          |                           |   |           |                       |   |            |                      |                                                                                                           |
| 1    | AS-B-A     | SOLID MOUNT ADAPTOR                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                       |    |             |   |        |                     |   |          |                                    |    |          |                        |   |          |                       |    |          |                           |    |          |                           |   |           |                       |   |            |                      |                                                                                                           |
| 1    | AS-250-A   | INSULATING DISC FOR ABB COBOT UNIT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                                                                                                                                       |    |             |   |        |                     |   |          |                                    |    |          |                        |   |          |                       |    |          |                           |    |          |                           |   |           |                       |   |            |                      |                                                                                                           |
| 10   | 75001004   | INSULATING WASHER, 260                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                       |    |             |   |        |                     |   |          |                                    |    |          |                        |   |          |                       |    |          |                           |    |          |                           |   |           |                       |   |            |                      |                                                                                                           |
| 5    | 75004033   | GAS DIFFUSER, STD, M6                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                       |    |             |   |        |                     |   |          |                                    |    |          |                        |   |          |                       |    |          |                           |    |          |                           |   |           |                       |   |            |                      |                                                                                                           |
| 10   | 75045014   | CONTACT TIP, .045 / 1.2MM                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                       |    |             |   |        |                     |   |          |                                    |    |          |                        |   |          |                       |    |          |                           |    |          |                           |   |           |                       |   |            |                      |                                                                                                           |
| 10   | 75045011   | CONTACT TIP, .035 / .09MM                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                       |    |             |   |        |                     |   |          |                                    |    |          |                        |   |          |                       |    |          |                           |    |          |                           |   |           |                       |   |            |                      |                                                                                                           |
| 2    | 75010228T  | LINER, 10', .035-.045                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                       |    |             |   |        |                     |   |          |                                    |    |          |                        |   |          |                       |    |          |                           |    |          |                           |   |           |                       |   |            |                      |                                                                                                           |
| 2    | 75146202-I | NOZZLE, 9/16 CONICAL                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                       |    |             |   |        |                     |   |          |                                    |    |          |                        |   |          |                       |    |          |                           |    |          |                           |   |           |                       |   |            |                      |                                                                                                           |
| C.   | 1          | <p><b>Gas Pressure Sensor with 4-digit alphanumeric display:</b><br/>Used to detect gas pressure for the welding process.<br/>Includes:</p> <ul style="list-style-type: none"><li>• (Qty.1), Part Number PN7094 Electronic pressure monitor.</li><li>• (Qty.1), Part Number E10077 Mounting set.</li><li>• Gas Hose and fittings.</li></ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <p><b>Gas Pressure Sensor</b></p>                                                                                                                                                                                                                |    |             |   |        |                     |   |          |                                    |    |          |                        |   |          |                       |    |          |                           |    |          |                           |   |           |                       |   |            |                      |                                                                                                           |



| Item | Qty. | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | Picture                                                                                                             |
|------|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------|
| D.   | 1    | <b>Welding Torch Cable Management:</b><br>Brackets to hold Torch<br>                                                                                                                                                                                                                                                                                                                                                                                                                                                     | See Left                                                                                                            |
| E.   | 1    | <b>BullsEye® III Torch Calibration System:</b> <ul style="list-style-type: none"> <li>Automatically defines robot Tool Center Point (TCP)</li> <li>Automatically adjusts incorrect TCP and torch angle.</li> <li>Records deviations in robot service software.</li> <li>Increases up-time.</li> <li>Eliminates program “touch-ups.”</li> <li>Includes calibration check pointer for quick visual reference.</li> <li>PN 2032190 Bullseye III</li> <li>PN RKMV3-224/10M Cable</li> </ul> <b>Note</b> <ul style="list-style-type: none"> <li>Bullseye sensor wired to robot’s DSQC 1030 I/O card.</li> </ul> | <b>BullsEye</b><br>              |
| F.   | 1    | <b>Gas Pressure Sensor with 4-digit alphanumeric display:</b><br>Used to detect gas pressure for the welding process.<br>Includes: <ul style="list-style-type: none"> <li>(Qty.1), Part Number PN7094 Electronic pressure monitor.</li> <li>(Qty.1), Part Number E10077 Mounting set.</li> <li>Gas Hose and fittings.</li> </ul>                                                                                                                                                                                                                                                                           | <b>Gas Pressure Sensor</b><br> |
| G.   | 1    | <b>Welding Function Package Integration:</b> <ul style="list-style-type: none"> <li>Mechanical mount wire feeder and weld torch</li> <li>All ABB supplied equipment tested.</li> <li>Validation of ALL Safety circuits</li> <li>Validation of TCP</li> <li>Connection of welding cables and hoses.</li> <li>IO configuration of equipment</li> <li>10’ Positive lead Welding cable</li> <li>10’ Negative lead welding cable</li> <li>10’ Gas hoses.</li> <li>Functional test of all welding and peripheral equipment</li> </ul>                                                                            | <b>Integration</b><br>         |



## Conditions of Sales

### Acceptance of Purchase Order:

A current credit history review will be conducted upon receipt of a purchase order and must be approved by the ABB N.A. Executive Committee prior to acceptance of a purchase order.

Final payment terms may be modified upon results of the credit review.

### Construction Location:

Construction and run-off of the system will be executed at Auburn Hills, MI.

### Conditions of Sale

Additional terms and conditions are the attached ABB Inc. Conditions of Sale.

### Validity:

This quotation is valid for 60 days.

### Warranty:

Standard ABB Warranty is 12 months from start of production not to exceed 18 months from shipment, whichever occurs first, if an ABB Robot Installation Report is generated and submitted to ABB Customer Service Department. Any special warranty offering may be found in the quoted robot content description.

### Third Party Material Warranty:

- Third party material where ABB selects the vendor, ABB Warranty applies.
- Third party material where Customer directs ABB to specific vendor, that vendor's warranty applies. ABB will provide applicable warranty information to Customer.

### Tariff Clause:

The price does not include any amounts for changes in taxes, tariffs, or other similar charges that may cause an increase in the cost of materials to be supplied or used to supply the equipment herein. ABB shall be entitled to an equitable adjustment in time and money for any costs that it incurs directly or indirectly that arise out of or relate to changes in taxes, tariffs, or similar charges due to such changes including, without limitation, escalation, delay damages, costs to re-procure, costs to change suppliers, costs of manufactured equipment or goods, or other costs of any kind resulting from the changes.

### Market Conditions:

Both parties are aware of the global supply chain and related challenges and uncertainties from outbreaks, pandemics, epidemics, war (declared or undeclared), government regulations and acts of governmental authorities (including sanctions), civil unrest, and general shortages of electronic components and availability and cost of other raw materials that may impact the cost of both parties and/or delivery schedule(s)/dates. Notwithstanding anything in this proposal to the contrary, the parties agree that in the event of the occurrence of any of the above aforementioned challenges, in the spirit of cooperation they will work together in good faith to make an equitable adjustment to the delivery dates, pricing and/or possible reductions of the contractually owed quantity of the equipment to be delivered to the purchaser, with a view to employing reasonable efforts to ensure that this proposal can be at least fulfilled in part. In the event the parties are unable to reach a mutually acceptable equitable adjustment within fifteen (15) working days for any of the foregoing, then the parties shall be excused from performance under the proposal which shall terminate. Each party waives any claim against the other party either for direct damages and/or loss of profits and/or indirect and/or intermediate and/or



consequential and/or punitive damages, penalties and/or liquidated damages arising from or anyhow connected with the excusable events provided hereto.

Overtime, exchange rates fluctuate and may impair a party's ability to operate under the terms of this proposal. In such event the parties will meet to determine if there is a need for an equitable adjustment.

## **ABB's Responsibilities and support Items**

### **System Engineering**

Every system order is assigned a project manager, who follows the job through start-up at the customer's plant as the project is proposed. He or she is responsible for technical and contractual project management, project schedules, customer liaison, and coordination of design, build, assembly, and function test activities.

The system engineering function also produces system-related documents such as cell layouts, interface schematics, etc.

### **Project Schedule**

A project management schedule will be provided showing H2I Group milestones that would be covered for execution of the project. This form is initially broad in scope and will be made more detailed as the project progresses. This form will show both ABB's and H2I Group milestones and will be distributed at least once a month during the duration of the project.

### **System Assembly**

The system assembly function varies from project to project, but typically includes all or most of the following:

- Set-up of components.
- Mechanical, electrical, and pneumatic assembly.
- Functional Test and debug.
- Construction of mockups for demonstration (not included).
- Acceptance runoff (function Test).
- Tear down and packing for shipment.

### **Documentation**

ABB Inc. agrees to furnish mechanical design drawings, all electrical panel, I/O charts, and hardware schematic drawings in ".pdf" format.

Certain other proprietary design information will also not be supplied. Such is the case with "off-the-shelf" products, which contain no custom design content. Wherever this occurs H2I Group will be furnished a complete bill of material and assembly drawing (in vendor provided format) describing all replaceable items.

### **Additional System Commissioning and Start-Up support**

(To be purchased separately see option)

At additional cost ABB Inc. will also supply one (1) field service technician, ten hours a day, during one (1) shift for a period of time that was outlined in the investment summary (not including weekends or holidays). This time is to be used for commissioning and start up support of the machine, system programming, start-up assistance, travel and for the verification and assistance of product capability. The utilization of the manpower will be distributed at the discretion of the ABB / H2I Group team.



It is assumed H2I Group will purchase additional time as needed to support the start-up and launch phases of this project if delays occur that are not the fault of ABB.

Overtime and weekend work (if it is required or requested) will count as time and one half in terms using up the man-day allotment. At the completion of the allotted time, adjustments will be made for any time spent by ABB Inc. technicians correcting equipment problems due to faulty design. Beyond that, additional commissioning time required must be purchased at ABB Inc.

### **Clarifications and Assumptions**

1. ABB Inc. process assumes zero interference with process equipment that is furnished by others.
2. ABB's scope of supply is limited to this proposal and cannot accept responsibility for the functionality of equipment furnished by others.
3. H2I Group is to provide labor and install all safety equipment not included in this proposal to meet specific plant safety specifications and OSHA regulations.
4. Our proposal is based on only the information we have received to date. Should new details surface after submittal of this proposal, or receipt of the order, adjustments in concepts and price may be necessary.
5. The authority to patent any special ABB Inc. designed equipment must be negotiated at time of order placement. All patent rights are reserved by ABB Inc. unless written approval is received from ABB prior to applying for any and all patents of ABB designed equipment.
6. It is ABB Inc. understanding that the entire system will be floor mounted by H2I Group
7. No part tryout has been included in this proposal.
8. All project related meetings will be held at ABB Inc. in Auburn Hills Mi.

### **H2I Group Responsibilities:**

1. H2I Group is responsible for any and all cell safety equipment, safety equipment integration and documentation to the ABB furnished equipment to meet or exceed ANSI-RIA, OSHA, and local equipment safety requirements including, but not limited to:
  - a. Risk assessments.
  - b. Additional safety hardware.
  - c. Hardware integration.
  - d. Testing and verification of safety and cell operations.
  - e. Safety documents.
  - f. Lock-out tag out documents.
  - g. Etc.
2. H2I Group is responsible for all welding process parameters and weld process development. There is no welding process parameters and weld process development in this proposal.
3. H2I Group is responsible for all fixtures and tooling to locate and hold the parts to be welded. There is no part tooling or tooling integration included in this base proposal (see options).
4. H2I Group is responsible for ventilation of the cell. It cannot be emphasized enough that good ventilation of the cell is critical. ABB suggests that local ventilation vendor or Robovent be consulted to procure a good system.
5. Preparation of the plant floor and the surrounding area to accept the system. This includes the removal of any and all equipment, which is not required for the operation of or interfering with the system.



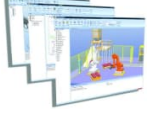
6. Leveling and floor anchoring of ABB Inc. provided machines and equipment and any reinforcing of the existing floor that is necessary.
7. The field wiring (material and labor) and location of any or all other machinery, equipment, conveyors, pallet stops, lift and locates, signals, interfacing, design, re-design, build costs or any other expenses or liability incurred as a result of use or implementation of the aforementioned ABB Inc. equipment, or ABB Inc. provided services.
8. Provide time for operators and skilled trade's personnel to attend scheduled training classes on operation and maintenance of the equipment if purchased as an option.
9. Procurement of any and all consumable materials required for the operation of the system.
10. Disposal and shipping of any of the above materials and / or containers as required.
11. All necessary hanger support beams and special fabrications for wire-ways.
12. Any field modifications to the system guarding not anticipated and performed while at ABB Inc. facility.
13. All crating, shipping costs, freight duties, tariffs, country fees, taxes, or any other expenses attributed to delivery to H2I Group facilities.
14. All crating, duties, shipping costs, and taxes for H2I Group supplied materials and for the system.
15. Any other peripheral equipment, to complete the system, which is not specified in this proposal.

**Acceptance at ABB Auburn Hills Plant:**

- A. Run-off will consist of a functional test of general cell functionality including safety such as emergency stop and auto-stop conditions. All purchased welding equipment and peripheral equipment will be function tested including a basic weld coupon test.
- B. The successful conclusion of above stated tests shall constitute a run-off and acceptance at ABB by H2I Group
- C. A comprehensive acceptance documentation package including video and photos of each major assembly.

### Optional Products and Services:

Note: Should be ordered with original PO to avoid additional costs.

| Item | Qty | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | Picture                                                                               | Price                    |
|------|-----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|--------------------------|
| 50.  | 1   | <b>One Week Startup Support USA:</b><br>On-Site Engineer-at plant. <ul style="list-style-type: none"> <li>40 hours (8hrs/day for 5 consecutive days) at the plant</li> <li>Travel expenses included in the price.</li> </ul>                                                                                                                                                                                                                                                                                             |    | <b>\$13,750/ Week</b>    |
| 51.  | 1   | <b>ABB Training Certificate:</b><br>ABB Training Certificate. <ul style="list-style-type: none"> <li>Can be used for any standard 4-5 day training course at ABB Auburn Hills, training center.</li> <li>Course Schedule can be found at: <a href="http://www.abb.us/abbuniversity.com">www.abb.us/abbuniversity.com</a></li> </ul>                                                                                                                                                                                      |    | <b>\$3,019 / Student</b> |
| 52.  | 1   | <b>Robot Studio Software:</b> <ul style="list-style-type: none"> <li>ABB's simulation and offline programming software allows robot programming to be done on a PC in the office without shutting down production. RobotStudio also enables robot programs to be prepared in advance, increasing overall productivity.</li> <li>12 Months Subscription</li> <li>Includes the Cloud</li> </ul>                                                                                                                            |    | <b>\$3,400 / Seat</b>    |
| 53.  | 1   | <b>RobotStudio Arc Welding PowerPac Software:</b> <ul style="list-style-type: none"> <li>Arc Welding PowerPac is an add-in to RobotStudio which is a unique, geometry based, off-line programming tool for generating arc welding programs.</li> <li>Allows user to define weld locations on CAD geometries then the system automatically creates weld paths including approach and departure positions.</li> <li>Provides ability to input work, push/drag, and spin angles.</li> <li>12 Months Subscription</li> </ul> |  | <b>\$1,908/ Each</b>     |
| 54.  | 1   | <b>CAD Converters Robot Studio Software:</b><br>Choose <u>One</u> File Converter Type.<br>12 Months Subscription <ul style="list-style-type: none"> <li>IGES, STEP, VDAFS, CATIA V4, CATIA V5, Inventor, Pro Engineer</li> </ul>                                                                                                                                                                                                                                                                                         |  | <b>\$1,272/ Each</b>     |

| Item           | Qty            | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Picture                                                                                                                    | Price       |                |          |                |                |                                                                                                                                                                                                                                                  |          |
|----------------|----------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------|-------------|----------------|----------|----------------|----------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|
| 55.            | 1              | <b>Retractable FlexPendant Cable Reel for TPU4:</b><br><i>For IRC5* &amp; OmniCore Controllers</i> <table><tr><th>Part Number</th><th>Description</th></tr><tr><td>3HAC086287-002</td><td>20 meter</td></tr><tr><td>3HAC087068-001</td><td>Adaptor cable*</td></tr></table>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Part Number                                                                                                                | Description | 3HAC086287-002 | 20 meter | 3HAC087068-001 | Adaptor cable* | <b>Retractable Flex Pendant Cable Reel</b><br><br><b>Adapter Cable</b><br> | See left |
| Part Number    | Description    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                            |             |                |          |                |                |                                                                                                                                                                                                                                                  |          |
| 3HAC086287-002 | 20 meter       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                            |             |                |          |                |                |                                                                                                                                                                                                                                                  |          |
| 3HAC087068-001 | Adaptor cable* |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                            |             |                |          |                |                |                                                                                                                                                                                                                                                  |          |
| 56.            | 1              | <b>OmniCore Teach Pendant Armor:</b> <ul style="list-style-type: none"><li>• Energy-absorbing teach pendant frame.</li><li>• Manufactured from Santoprene™ rubber, this bumper provides protection for the ABB IRC5 flex pendant if accidentally dropped from heights of up to 1.5m. Each bumper is custom-molded to the flex pendant's exterior shell and features a “stretch-to-fit” installation (akin to a cell phone bumper). Protective ridges are molded around the e-stop buttons and joystick—but do not interfere with their operation. Access to USB connections, stylus ports and cable pass-through is also preserved. Each bumper is aggressively textured to maintain positive grip/feel in wet conditions or in the presence of lubricants/coolants. The energy-absorbing frame is perforated throughout for weight-savings and to reduce surface tension/accumulation of fluids.</li><li>• ABB PN 3HACARMOR-OMNI</li></ul> | <b>OmniCore Teach Pendant Armor</b><br> |             |                |          |                |                |                                                                                                                                                                                                                                                  |          |





## ABB INC. – ROBOTICS BUSINESS AREA US GENERAL TERMS AND CONDITIONS OF SALE

### 1. General.

The terms and conditions contained herein, together with any additional or different terms contained in ABB's proposal, quotation and/or invoice ("Proposal"), if any, submitted to Purchaser (which Proposal, Policies, Addendum(s), if any, submitted to Purchaser shall control over any conflicting terms), constitute the entire agreement (the "Agreement") between the parties with respect to the purchase order and supersede all prior communications and agreements regarding the purchase order. Acceptance by ABB of the purchase order, or Purchaser's acceptance of ABB's Proposal, is expressly limited to and conditioned upon Purchaser's acceptance of these terms and conditions, payment for or acceptance of any performance by ABB being acceptance. These terms and conditions may not be changed or superseded by any different or additional terms and conditions proposed by Purchaser to which terms ABB hereby objects. Unless the context otherwise requires, the term "Equipment" as used herein means all of the equipment, parts, accessories sold, and all software and software documentation, if any, licensed to Purchaser by ABB ("Software") under the purchase order. Unless the context otherwise requires, the term "Services" as used herein means all labor, supervisory, technical and engineering, installation, repair, consulting or other services provided by ABB under the purchase order. As used herein, the term "Purchaser" shall also include the initial end user of the Equipment and/or services; provided, however, that Article 14(a) shall apply exclusively to the initial end user.

### 2. Prices.

(a) Unless otherwise specified in writing, all Proposals expire thirty (30) days from the date thereof and may be modified or withdrawn by ABB before receipt of Purchaser's conforming acceptance. All quoted prices are subject to revision at any time in the event of any increase in raw material, energy costs or governmental actions such as tariffs.

(b) Unless otherwise stated herein, Services prices are based on normal business hours (8 a.m. to 5 p.m. Monday through Friday). Overtime and Saturday hours will be billed at one and one-half (1 1/2) times the hourly rate; and Sunday hours will be billed at two (2) times the hourly rate; holiday hours will be billed at three (3) times the hourly rate. If a Services rate sheet is attached hereto, the applicable Services rates shall be those set forth in the rate sheet. Rates are subject to change without notice.

(c) The price does not include any federal, state or local property, license, privilege, sales, use, excise, gross receipts, or other like taxes which may now or hereafter be applicable. Purchaser agrees to pay or reimburse any such taxes which ABB or its suppliers are required to pay or collect. If Purchaser is exempt from the payment of any tax or holds a direct payment permit, Purchaser shall, upon purchase order placement, provide ABB a copy, acceptable to the relevant governmental authorities of any such certificate or permit.

(d) The price includes customs duties and other importation or exportation fees, if any, at the rates in effect on the date of ABB's Proposal. Any change after that date in such duties, fees, or rates, shall increase the price by ABB's additional cost.

(e) Overtime, exchange rates fluctuate and may impair a party's ability to operate under the terms of the Agreement. In such event the parties will meet to determine if there is a need for an equitable adjustment.

### 3. Payment.

(a) Unless specified to the contrary in writing by ABB, payment terms are net cash, payable without offset, in United States Dollars, 30 days from date of invoice by wire transfer to the account designated by ABB in the Proposal. ABB is not required to commence or continue its performance unless and until invoiced payments have been received in a timely fashion. For each day of delay in receiving required payments, ABB shall be entitled to a matching extension of the schedule.

(b) If in the judgment of ABB the financial condition of Purchaser at any time prior to delivery does not justify the terms of payment specified, ABB may require payment in advance, payment security satisfactory to ABB and suspend its performance until said advance payment or payment security is received or may terminate the purchase order, whereupon ABB shall be entitled to receive reasonable cancellation charges. If delivery is delayed by Purchaser, payment shall be due on the date ABB is prepared to make delivery. Delays in delivery or nonconformities in any installments delivered shall not relieve Purchaser of its obligation to accept and pay for remaining installments.

(c) Purchaser shall pay, in addition to the overdue payment, a late charge equal to the lesser of 1 1/2% per month or any part thereof or the highest applicable rate allowed by law on all such overdue amounts plus ABB's attorneys' fees and court costs incurred in connection with collection. If Purchaser fails to make payment of any amounts due under any purchase order and fails to cure such default within ten (10) days after receiving written notice specifying such default, then ABB may by written notice, at its option, suspend its performance under the purchase order until such time as the full balance is paid or terminate the purchase order, as of a date specified in such notice. In the event of suspension, cancellation or termination hereunder, ABB will be entitled to recover all costs for work performed to date, costs associated with suspension, cancellation or termination of the work and all other costs recoverable at law.

### 4. Changes.

(a) Any changes requested by Purchaser affecting the ordered scope of work must first be reviewed by ABB and any resulting adjustments to affected provisions, including price, schedule, and guarantees mutually agreed in writing prior to implementation of the change.

(b) ABB may, at its expense, make such changes in the Equipment or Services as it deems necessary, in its sole discretion, to conform the Equipment or Services to the applicable specifications. If Purchaser objects to any such changes, ABB shall be relieved of its obligation to conform to the applicable specifications to the extent that conformance may be affected by such objection.

### 5. Delivery.

(a) All Equipment manufactured, assembled or warehoused in the continental United States is delivered FCA ABB point of shipment, Incoterms® 2020 unless otherwise mutually agreed in writing. Equipment shipped outside the continental United States is delivered FCA Incoterms® 2020 United States port of export unless otherwise mutually agreed in writing. Purchaser shall be responsible for any and all demurrage or detention charges.

(b) If the scheduled delivery of Equipment is delayed by Purchaser or by Force Majeure, ABB may move the Equipment to storage for the account of and at the risk of Purchaser whereupon it shall be deemed to be delivered.

(c) Shipping and delivery dates are contingent upon Purchaser's timely approvals and delivery by Purchaser of any documentation required for ABB's performance hereunder.





(d) Claims for shortages or other errors in delivery must be made in writing to ABB within ten days of delivery. Equipment may not be returned except with the prior written consent of and subject to terms specified by ABB. Claims for damage after delivery shall be made directly by Purchaser with the common carrier.

#### **6. Title & Risk of Loss.**

Except with respect to Software (for which title shall not pass, use being licensed) title to Equipment shall transfer to Purchaser upon delivery according to the applicable freight term. Notwithstanding any agreement with respect to delivery terms or payment of transportation charges, risk of loss or damage with respect to the sale of Equipment shall pass from ABB to Purchaser at delivery as defined in this Agreement.

#### **7. Inspection, Testing and Acceptance.**

- (a) Any inspection by Purchaser of Equipment on ABB's premises shall be scheduled in advance to be performed during normal working hours and subject to rules and regulations in place at the ABB premises.
- (b) If the purchase order provides for factory acceptance testing, ABB shall notify Purchaser when ABB will conduct such testing prior to shipment. Unless Purchaser states specific objections in writing within ten (10) days after completion of factory acceptance testing, completion of the acceptance test constitutes Purchaser's factory acceptance of the Equipment and its authorization for shipment.
- (c) If the purchase order provides for site acceptance testing, testing will be performed by ABB personnel to verify that the Equipment has arrived at site complete, without physical damage, and in good operating condition. Completion of site acceptance testing constitutes full and final acceptance of the Equipment. If, through no fault of ABB, acceptance testing is not completed within thirty (30) days after arrival of the Equipment at the site, the site acceptance test shall be deemed completed and the Equipment shall be deemed accepted.

#### **8. Warranties and Remedies.**

- (a) Equipment and Services Warranty. ABB warrants that Equipment (excluding Software, which is warranted as specified in paragraph (d) below) shall be delivered free of defects in material and workmanship and that Services shall be free of defects in workmanship. The Warranty Remedy Period for Equipment (excluding Software and Spare Parts) shall end twelve (12) months after installation or eighteen (18) months after date of shipment, whichever first occurs. The Warranty Remedy Period for new spare parts shall end twelve (12) months after date of shipment. If the purchase order includes the sale of refurbished or repaired parts, the Warranty Remedy Period for such parts shall end ninety (90) days after date of shipment. The Warranty Remedy Period for Services shall end ninety (90) days after the date of completion of Services.
- (b) Equipment and Services Remedy. If a nonconformity to the foregoing warranty is discovered in the Equipment or Services during the applicable Warranty Remedy Period, as specified above, under normal and proper use and provided the Equipment has been properly stored, installed, operated and maintained and written notice of such nonconformity is provided to ABB promptly after such discovery and within the applicable Warranty Remedy Period, ABB shall, at its option, either (i) repair or replace the nonconforming portion of the Equipment or re-perform the nonconforming Services or (ii) refund the portion of the price applicable to the nonconforming portion of Equipment or Services. If any portion of the Equipment or Services so repaired, replaced or re-performed fails to conform to the foregoing warranty, and written notice of such nonconformity is provided to ABB promptly after discovery and within the original Warranty Remedy Period applicable to such Equipment or Services or thirty (30) days from completion of such repair, replacement or re-performance, whichever is later, ABB will repair or replace such nonconforming Equipment or re-perform the nonconforming Services. The original Warranty Remedy Period shall not otherwise be extended.
- (c) Exceptions. ABB shall not be responsible for providing temporary power, removal, installation, reimbursement for labor costs or working access to the nonconforming Equipment, including disassembly and re-assembly of non-ABB supplied equipment, or for providing transportation to or from any repair facility, or for any other expenses incurred in connection with the repair or replacement, all of which shall be at Purchaser's risk and expense. ABB shall have no obligation hereunder with respect to any Equipment which (i) has been improperly repaired or altered; (ii) has been subjected to misuse, negligence or accident; (iii) has been used in a manner contrary to ABB's instructions; (iv) is comprised of materials provided by or a design specified by Purchaser; or (v) has failed as a result of ordinary wear and tear. Equipment supplied by ABB but manufactured by others is warranted only to the extent of the manufacturer's warranty, and only the remedies, if any, provided by the manufacturer will be allowed.
- (d) Software Warranty and Remedies. ABB warrants that, except as specified below, the Software will, when properly installed, execute in accordance with ABB's published specification. If a nonconformity to the foregoing warranty is discovered during the period ending one (1) year after the date of shipment and written notice of such nonconformity is provided to ABB promptly after such discovery and within that period, including a description of the nonconformity and complete information about the manner of its discovery, ABB shall correct the nonconformity by, at its option, either (i) modifying or making available to the Purchaser instructions for modifying the Software; or (ii) making available at ABB's facility necessary corrected or replacement programs. ABB shall have no obligation with respect to any nonconformities resulting from (i) unauthorized modification of the Software or (ii) Purchaser-supplied software or interfacing. ABB does not warrant that the functions contained in the software will operate in combinations which may be selected for use by the Purchaser, or that the software products are free from errors in the nature of what is commonly categorized by the computer industry as "bugs".
- (e) THE FOREGOING WARRANTIES ARE EXCLUSIVE AND IN LIEU OF ALL OTHER WARRANTIES OF QUALITY AND PERFORMANCE, WHETHER WRITTEN, ORAL OR IMPLIED, AND ALL OTHER WARRANTIES INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE OR USAGE OF TRADE ARE HEREBY DISCLAIMED. THE REMEDIES STATED HEREIN CONSTITUTE PURCHASER'S EXCLUSIVE REMEDIES AND ABB'S ENTIRE LIABILITY FOR ANY BREACH OF WARRANTY.

#### **9. Intellectual Property Indemnification.**

- (a) ABB shall defend at its own expense any action brought against Purchaser alleging that the Equipment or the use of the Equipment to practice any process for which such Equipment is specified by ABB (a "Process") directly infringes a patent in effect in the United States, an European Union member state or the country of the Site (provided there is a corresponding patent issued by the U.S., UK or an EU member state), or any copyright or trademark registered in the country of the Site and to pay all damages and costs finally awarded in any such action, provided that Purchaser has given ABB prompt written notice of such action, all necessary assistance in the defense thereof and the right to control all aspects of the defense thereof including the right to settle or otherwise terminate such action on behalf of Purchaser.
- (b) ABB shall have no obligation hereunder and this provision shall not apply to: (i) any other equipment or processes, including Equipment or Processes which have been modified or combined with other equipment or process not supplied by ABB; (ii) any Equipment or Process supplied according to a design, other than an ABB design, required by Purchaser; (iii) any products manufactured by the Equipment or Process; (iv) any



use of the Equipment or Process contrary to ABB instructions; (v) any patent issued after the date hereof; or (vi) any action settled or otherwise terminated without the prior written consent of ABB.

(c) If, in any such action, the Equipment is held to constitute an infringement, or the practice of any Process using the Equipment is finally enjoined, ABB shall, at its option and its own expense, procure for Purchaser the right to continue using said Equipment; or modify or replace it with non-infringing equipment or, with Purchaser's assistance, modify the Process so that it becomes non-infringing; or remove it and refund the portion of the price allocable to the infringing Equipment. THE FOREGOING PARAGRAPHS STATE THE EXCLUSIVE LIABILITY OF ABB AND EQUIPMENT MANUFACTURER FOR ANY INTELLECTUAL PROPERTY INFRINGEMENT.

(d) To the extent that said Equipment or any part thereof is modified by Purchaser, or combined by Purchaser with equipment or processes not furnished hereunder (except to the extent that ABB is a contributory infringer) or said Equipment or any part thereof is used by Purchaser to perform a process not furnished hereunder by ABB or to produce an article, and by reason of said modification, combination, performance or production, an action is brought against ABB, Purchaser shall defend and indemnify ABB in the same manner and to the same extent that ABB would be obligated to indemnify Purchaser under this "Intellectual Property Indemnification" provision.

#### **10. Waiver of Consequential Damages.**

In no event shall ABB, its suppliers or subcontractors be liable for special, indirect, incidental or consequential damages, whether in contract, warranty, tort, negligence, strict liability or otherwise, including, but not limited to, loss of profits or revenue, loss of data, loss of use, loss of use of any of the Equipment or any associated equipment, cost of capital, cost of substitute equipment, facilities or services, downtime costs, delays, and claims of customers of the Purchaser or other third parties for any damages.

#### **11. Limitation of Liability.**

(a) ABB's aggregate liability for all claims whether in contract, warranty, tort, negligence, strict liability, or otherwise for any loss or damage arising out of, connected with, or resulting from this Agreement or the performance or breach thereof, or from the design, manufacture, sale, delivery, resale, repair, replacement, installation, technical direction of installation, inspection, operation or use of any equipment covered by or furnished under this Agreement, or from any services rendered in connection therewith, shall in no case (except as provided in the section entitled "Intellectual Property Indemnification") exceed the purchase order price.

(b) All causes of action against ABB arising out of or relating to this Agreement or the performance or breach hereof shall expire unless brought within one (1) year of the time of accrual thereof.

(c) In no event, regardless of cause, shall ABB be liable for penalties or penalty clauses of any description or for indemnification of Purchaser or others for costs, damages, or expenses arising out of or related to the Equipment and/Services.

#### **12. Laws and Regulations.**

ABB does not assume any responsibility for compliance with federal, state or local laws and regulations, except as expressly set forth herein, and compliance with any laws and regulations relating to the operation or use of the Equipment or Software is the sole responsibility of the Purchaser. All laws and regulations referenced herein shall be those in effect as of the Proposal date. In the event of any subsequent revisions or changes thereto, ABB assumes no responsibility for compliance therewith. If Purchaser desires a modification as a result of any such change or revision, it shall be treated as a change per Article 4. Nothing contained herein shall be construed as imposing responsibility or liability upon ABB for obtaining any permits, licenses or approvals from any agency required in connection with the supply, erection or operation of the Equipment. This Agreement shall in all respects be governed by, and construed, interpreted and enforced in accordance with the laws of the State of New York, USA, excluding its conflicts of laws rules and the provisions of the United Nations Convention on Contracts for the International Sale of Goods, and both parties hereby agree that any litigation concerning, arising out of, or related to this Agreement, whether claims are based on contract, tort, equity or otherwise, shall be conducted only in the state or federal courts functioning in the State of New York, Manhattan County and waive the defense of an inconvenient forum in respect to any such litigation. If any provision hereof, partly or completely, shall be held invalid or unenforceable, such invalidity or unenforceability shall not affect any other provision or portion hereof and these terms shall be construed as if such invalid or unenforceable provision or portion thereof had never existed.

#### **13. OSHA.**

ABB warrants that the Equipment will comply with the relevant standards of the Occupational Safety and Health Act of 1970 ("OSHA") and the regulations promulgated thereunder as of the date of the Proposal. Upon prompt written notice from the Purchaser of a breach of this warranty, ABB will replace the affected part or modify it so that it conforms to such standard or regulation. ABB's obligation shall be limited to such replacement or modification. In no event shall ABB be responsible for liability arising out of the violation of any OSHA standards relating to or caused by Purchaser's design, location, operation, or maintenance of the Equipment, its use in association with other equipment of Purchaser, or the alteration of the Equipment by any party other than ABB.

#### **14. Software License.**

(a) ABB owns all rights in or has the right to sublicense all of the Software, if any, to be delivered to Purchaser under this Agreement. As part of the sale made hereunder Purchaser hereby obtains a limited license to use the Software, subject to the following: (i) the Software may be used only in conjunction with equipment specified by ABB; (ii) the Software shall be kept strictly confidential; (iii) the Software shall not be copied, reverse engineered, or modified; (iv) the Purchaser's right to use the Software shall terminate immediately when the specified equipment is no longer used by the Purchaser or when otherwise terminated, e.g. for breach, hereunder; and (v) the rights to use the Software are non-exclusive and non-transferable, except with ABB's prior written consent.

(b) Nothing in this Agreement shall be deemed to convey to Purchaser any title to or ownership in the Software or the intellectual property contained therein in whole or in part, nor to designate the Software a "work made for hire" under the Copyright Act, nor to confer upon any person who is not a named party to this Agreement any right or remedy under or by reason of this Agreement. In the event of termination of this License, Purchaser shall immediately cease using the Software and, without retaining any copies, notes or excerpts thereof, return to ABB the Software and all copies thereof and shall remove all machine-readable Software from all of Purchaser's storage media.

#### **15. Intellectual Property, Inventions and Information.**

(a) "Intellectual Property Rights" means all current and future rights in copyrights, trade secrets, trademarks, mask works, patents, design rights, trade dress, and any other intellectual property rights that may exist anywhere in the world, including, in each case whether unregistered, registered or comprising an application for registration, and all rights and forms of protection of a similar nature or having equivalent or similar effect to any of



the foregoing. "Technology" means all inventions, discoveries, ideas, concepts, methods, code, executables, manufacturing processes, unique compositions, mask works, designs, marks, and works of authorship fixed in the medium of expression, and materials pertaining to any of the preceding; whether or not patentable, copyrightable or subject to other forms of protection.

(b) ABB shall maintain all right, title and interest in any Technology and Intellectual Property Rights that ABB owned, created, conceived or discovered prior to entering into this Agreement, or owns, creates or discovers separately from the activities contemplated by this Agreement. Unless otherwise agreed in writing by ABB and Purchaser, ABB shall have all right, title and interest in any Technology and Intellectual Property Rights that ABB creates, conceives or discovers in furtherance of this Agreement, and ABB shall have all right, title and interest in any Technology and Intellectual Property Rights embodied in the Equipment and Services. Any design, manufacturing drawings or other information submitted to the Purchaser remains the exclusive property of ABB. Purchaser shall not, without ABB's prior written consent, copy or disclose such information to a third party, unless required by a public information request from a governmental body. Such information shall be used solely for the operation or maintenance of the Equipment and not for any other purpose, including the duplication thereof in whole or in part.

#### **16. Force Majeure.**

ABB shall neither be liable for loss, damage, detention or delay nor be deemed to be in default for failure to perform when prevented from doing so by causes beyond its reasonable control including but not limited to acts of war (declared or undeclared), delays attributable to outbreaks, epidemics and pandemics, Acts of God, fire, strike, labor difficulties, acts or omissions of any governmental authority or of Purchaser, compliance with government regulations, insurrection or riot, embargo, delays or shortages in transportation or inability to obtain necessary labor, materials, or manufacturing facilities from usual sources or from defects or delays in the performance of its suppliers or subcontractors due to any of the foregoing enumerated causes. In the event of delay due to any such cause, the date of delivery will be extended by period equal to the delay plus a reasonable time to resume production, and the price will be adjusted to compensate ABB for such delay.

#### **17. Cancellation.**

Special order, custom designed, and made-to-order Equipment are non-cancelable and non-returnable. Any other purchase order may be cancelled by Purchaser only upon prior written notice and payment of termination charges as set forth in the cancellation schedule included in the Proposal or payment of, including but not limited to, the purchase price of the work performed prior to the effective date of notice of termination, the costs identified to the purchase order incurred by ABB for work not completed, and all expenses incurred by ABB attributable to the termination, plus a fixed sum of ten (10) percent of the final total price to compensate for disruption in scheduling, planned production and other indirect costs.

#### **18. Termination.**

(a) No termination by Purchaser for material default shall be effective unless, within fifteen (15) days after receipt by ABB of Purchaser's written notice specifying such default, ABB shall have failed to initiate and pursue with due diligence correction of such specified default.

(b) If the event of termination for a material default, ABB shall reimburse Purchaser the difference between that portion of the Agreement price allocable to the terminated scope and the actual amounts reasonably incurred by Purchaser to complete that scope, and Purchaser shall pay to ABB the portion of the Agreement price allocable to Equipment completed and any amounts due for Services performed before the effective date of termination.

(c) ABB may terminate the Agreement (or any affected portion thereof) immediately for cause if Purchaser becomes insolvent/bankrupt, or materially breaches the Agreement, including, but not limited to, failure or delay in Purchaser making any payment when due, or fulfilling any payment conditions.

#### **19. Export Control and Market Conditions.**

(a) Purchaser represents and warrants that the Equipment and Services provided hereunder and the "direct product" thereof are intended for civil use only and will not be used, directly or indirectly, for the production of chemical or biological weapons or of precursor chemicals for such weapons, or for any direct or indirect nuclear end use. Purchaser agrees not to disclose, use, export or re-export, directly or indirectly, any information provided by ABB or the "direct product" thereof as defined in the Export Control Regulations of the United States Department of Commerce, except in compliance with such Regulations.

(b) If applicable, ABB shall file for a U.S. export license, but only after appropriate documentation for the license application has been provided by Purchaser. Purchaser shall furnish such documentation within a reasonable time after purchase order acceptance. Any delay in obtaining such license shall suspend performance of this Agreement by ABB. If an export license is not granted or, if once granted, is thereafter revoked or modified by the appropriate authorities, this Agreement may be canceled by ABB without liability for damages of any kind resulting from such cancellation. At ABB's request, Purchaser shall provide to ABB a Letter of Assurance and End-User Statement in a form reasonably satisfactory to ABB.

(c) Both parties are aware of the global supply chain and related challenges from outbreaks, pandemics, epidemics, war (declared or undeclared), government regulations and acts of governmental authorities (including sanctions), civil unrest, and general shortages of electronic components and availability and cost of other raw materials that may impact the cost of both parties and/or delivery dates. Notwithstanding anything in this Agreement to the contrary, the parties agree that in the event of the occurrence of any of the above aforementioned challenges, in the spirit of cooperation they will work together in good faith to make an equitable adjustments to delivery dates, pricing and/or possible reductions of the contractually owed quantity of the Equipment to be delivered to the Purchaser, with a view to employing reasonable efforts to ensure that this Agreement can be at least fulfilled in part. In the event the parties are unable to reach a mutually acceptable equitable adjustment within fifteen (15) working days for any of the foregoing, then the parties shall be excused from performance under the Agreement which shall terminate. Each party waives any claim against the other party either for direct damages and/or loss of profits and/or indirect and/or intermediate and/or consequential and/or punitive damages, penalties and/or liquidated damages arising from or anyhow connected with the excusable events provided hereto.

#### **20. Bribery and Corruption**

(a) Purchaser hereby warrants that it will not, directly or indirectly, and it has no knowledge that other persons will, directly or indirectly, make any payment, gift or other commitment to its customers, to government officials or to agents, directors and employees of ABB or any other party in a manner contrary to applicable laws (including but not limited to the Corruption of Foreign Public Officials Act (Canada), the Foreign Corrupt Practices Act (United States) and, where applicable, legislation enacted by member States and signatories implementing the OECD Convention Combating Bribery of Foreign Officials) and shall comply with all relevant laws, regulations, ordinances and rules regarding bribery and corruption.

(b) Nothing hereunder shall render ABB liable to reimburse Purchaser for any such consideration given or promised.



- (c) Purchaser's material violation of any of the obligations contained in this Section 20 may be considered by ABB to be a material breach hereunder and shall entitle ABB to terminate this Agreement with immediate effect and without prejudice to any further right or remedies on the part of ABB hereunder or applicable law. Purchaser shall indemnify ABB for all liabilities, damages, costs or expenses incurred as a result of any such violation of the above-mentioned obligations and termination of this Agreement.
- (d) Purchaser understands that ABB's Code of Conduct is available for consultation online at <http://www.abb.com/integrity>. Purchaser agrees to perform its contractual obligations hereunder with substantially similar standards of ethical behavior as those found in ABB's Code of Conduct.
- (e) ABB has established the following reporting channels where Purchaser and its employees may report suspected violations of applicable laws, policies or standards of conduct:

Web portal: [www.abb.com/integrity](http://www.abb.com/integrity) Telephone: number specified on the above Web portal Mail: address specified on the above Web portal

#### **21. Assignment.**

Any assignment of this Agreement or of any rights or obligations under the Agreement without prior written consent of ABB shall be void.

#### **22. Nuclear.**

Equipment and Services sold hereunder are not intended for use in connection with any nuclear facility or activity, and Purchaser warrants that it shall not use or permit others to use Equipment or Services for such purposes, without the advance written consent of ABB. If, in breach of this, any such use occurs, ABB (and its parent, affiliates, suppliers and subcontractors) disclaims all liability for any nuclear or other damage, injury or contamination, including without limitation any physical damage to a nuclear facility itself, resulting from a nuclear incident and, in addition to any other rights of ABB, Purchaser shall indemnify and hold ABB (and its parent, affiliates, suppliers and subcontractors) harmless against all such liability including, but not limited to, any physical damage to the nuclear facility or surrounding properties, if any. Consent of ABB to any such use, if any, will be conditioned upon additional terms and conditions that ABB determines to be acceptable for protection against nuclear liability including but not limited to the requirement that the Purchaser and/or its end user customer shall have complete insurance protection against liability and property damage including without limitation physical damage to a nuclear facility itself or any surrounding properties, if any, resulting from a nuclear incident and shall indemnify ABB, its subcontractors, suppliers and vendors against all claims resulting from a nuclear incident including, but not limited to, any physical damage to the nuclear facility.

#### **23. Resale.**

If Purchaser resells any of the Equipment or Services, the sale terms shall limit ABB's liability to the buyer to the same extent that ABB's liability to Purchaser is limited hereunder. Additionally, if the end-user intends to use the Equipment or Services in connection with any nuclear facility or activity, the Purchaser shall require the end-user comply with the financial requirements under Price-Anderson Act (PAA) and secure a written release of liability which flows from the end-user to the benefit of ABB.

#### **24. Environmental, Health and Safety Matters.**

- (a) Purchaser shall be obligated to maintain safe working conditions at its facility or location (the "Site"), including the implementing of appropriate procedures regarding Hazardous Materials, confined space entry, and energization and de-energization of power systems (electrical, mechanical and hydraulic) using safe and effective lock-out/tag-out ("LOTO") procedures including physical LOTO or a mutually agreed upon alternative method.
- (b) Purchaser shall immediately advise ABB in writing of all applicable Site-specific health, safety, security and environmental requirements and procedures. Without limiting Purchaser's responsibilities hereunder, ABB has the right but not the obligation to, from time to time, review, audit and inspect applicable health, safety, security and environmental documentation, procedures and conditions at the Site.
- (c) If, in ABB's reasonable opinion, the health, safety, or security of personnel or the Site is, or is likely to be, imperiled by security risks, the presence of or threat of exposure to Hazardous Materials, or unsafe working conditions, ABB may, in addition to other rights or remedies available to it, remove some or all of its personnel from Site, suspend performance of all or any part of the purchase order, and/or remotely perform or supervise work. Any such occurrence shall be considered a Force Majeure event. Purchaser shall reasonably assist in ensuring the safe departure of personnel from the Site.
- (d) Purchaser shall not require or permit ABB's personnel to operate Purchaser's equipment at Site.
- (e) Purchaser will make its Site medical facilities and resources reasonably available to ABB personnel who need medical attention.
- (f) ABB has no responsibility or liability for the pre-existing condition of Purchaser's equipment or the Site, which is the sole responsibility of Purchaser. Prior to ABB starting any work at Site, Purchaser will provide documentation that identifies the presence and condition of any Hazardous Materials existing in or about Purchaser's equipment or the Site that ABB may encounter while performing under this Agreement. The provision of such documentation shall in no way release Purchaser from its responsibility for said conditions. Purchaser shall disclose to ABB industrial hygiene and environmental monitoring data regarding conditions that may affect ABB's work or personnel at the Site. Purchaser shall keep ABB informed of changes in any such conditions.
- (g) ABB shall promptly notify Purchaser if ABB becomes aware of: (i) conditions at the Site differing materially from those disclosed by Purchaser, or (ii) previously unknown physical conditions at Site differing materially from those ordinarily encountered and generally recognized as inherent in work of the character provided for in the Agreement. If any such conditions cause an increase in ABB's cost of, or the time required for, performance of any part of the work under the Agreement, an equitable adjustment in price and schedule shall be made.
- (h) If ABB encounters Hazardous Materials in Purchaser's equipment or at the Site that require special handling or disposal, ABB is not obligated to continue work affected by the hazardous conditions. In such an event, Purchaser shall at its sole cost and expense eliminate the hazardous conditions in accordance with applicable laws and regulations so that ABB's work under the Agreement may safely proceed, and ABB shall be entitled to an equitable adjustment of the price and schedule to compensate for any increase in ABB's cost of, or time required for, performance of any part of the work. Purchaser shall properly store, transport and dispose of all Hazardous Materials introduced, produced or generated in the course of ABB's work at the Site.
- (i) Purchaser shall indemnify ABB for any and all claims, damages, losses, and expenses arising out of or relating to any Hazardous Materials which are or were (i) present in or about Purchaser's equipment or the Site prior to the commencement of ABB's work, (ii) improperly handled or disposed of by Purchaser or Purchaser's employees, agents, contractors or subcontractors, or (iii) brought, generated, produced or released on Site by parties other than ABB.

#### **25. Confidentiality.**





(a) ABB and Purchaser (as to information disclosed, the "Disclosing Party") may each provide the other party (as to information received, the "Receiving Party") with Confidential Information in connection with this Agreement. "Confidential Information" means (a) information that is designated in writing as "confidential" or "proprietary" by Disclosing Party at the time of written disclosure, and (b) information that is orally designated as "confidential" or "proprietary" by Disclosing Party at the time of oral or visual disclosure and is confirmed to be "confidential" or "proprietary" in writing within fifteen (15) days after the oral or visual disclosure or (c) information by its nature or the circumstances surrounding disclosure is or reasonably should be understood to be confidential or proprietary to the Disclosing Party or its Affiliates. In addition, prices for Equipment and Services shall be considered ABB's Confidential Information.

(b) Receiving Party agrees: (i) to use the Confidential Information only in connection with the Agreement and use of Equipment and Services, (ii) to take reasonable measures to prevent disclosure of the Confidential Information to third parties, and (iii) not to disclose the Confidential Information to a competitor of Disclosing Party. Notwithstanding these restrictions, each party shall permit access to the other's Confidential Information only to its employees who: (i) reasonably require access to Confidential Information for purposes approved by this Agreement, and (ii) have undertaken a binding obligation of confidentiality with respect to the confidential information of others entrusted to him or her, and (iii) have been apprised of the confidentiality obligations hereunder. ABB may disclose Confidential Information to its affiliates and subcontractors in connection with performance of the purchase order. A Receiving Party may only disclose Confidential Information to any other third party with the prior written permission of Disclosing Party, and in each case, only so long as the Receiving Party obtains a non-disclosure commitment from any such third party that prohibits disclosure of the Confidential Information and provided further that the Receiving Party remains responsible for any unauthorized use or disclosure of the Confidential Information. Receiving Party shall upon request return to Disclosing Party or destroy all copies of Confidential Information except to the extent that a specific provision of the Agreement entitles Receiving Party to retain an item of Confidential Information. ABB may also retain one archive copy of Purchaser's Confidential Information.

(c) The obligations under this Article 25 shall not apply to any portion of the Confidential Information that: (i) is or becomes generally available to the public other than as a result of disclosure by Receiving Party, its representatives or its affiliates; (ii) is or becomes available to Receiving Party on a non-confidential basis from a source other than Disclosing Party when the source is not, to the best of Receiving Party's knowledge, subject to a confidentiality obligation to Disclosing Party; (iii) is independently developed by Receiving Party, its representatives or affiliates, without reference to the Confidential Information; (iv) is required to be disclosed by law or valid legal process provided that the Receiving Party intending to make disclosure in response to such requirements or process shall promptly notify the Disclosing Party in advance of such disclosure and reasonably cooperate in attempts to maintain the confidentiality of the Confidential Information.

(d) As to any individual item of Confidential Information, the restrictions under this Article 25 shall expire five (5) years after the date of disclosure. This Article 25 does not supersede any separate confidentiality or nondisclosure agreement signed by the parties.

## 26. Non-Survival.

The following Articles shall not survive termination or cancellation of this Agreement: 5, 7, 8, 17 and 18. All other Articles shall survive the termination or cancellation of the Agreement.

## 27. Entire Agreement.

This Agreement constitutes the entire agreement between ABB and Purchaser. There are no agreements, understandings, restrictions, warranties, or representations between ABB and Purchaser other than those set forth herein or herein provided. As stated in Article 1 of this Agreement, ABB's Proposal, Policies, Addendum(s), if any, submitted to Purchaser, shall control over any conflicting terms. ABB specifically rejects any exceptions to this Agreement, Proposals, Policies, and/or Addendum(s) on the face of any purchase order. Purchaser shall advise ABB in writing of all conflicts, errors, omissions, or discrepancies among the Proposal, Policies, Addendum(s) and this Agreement immediately upon discovery. This Agreement shall supersede any standard, preprinted terms and conditions that are automatically attached to purchase orders issued by Purchaser.

## 28. US Government Contracts.

This Article 28 applies only if the Equipment, Software, and/or Services are purchased directly or indirectly, with federal, state or local government funding.

(a) Unless expressly and specifically stated otherwise by ABB herein:

- (i) all Equipment, Software, and/or Services provided by ABB under this Agreement meet the definition of "commercial product," "commercial computer software," "commercial service" and/or "commercial-off-the-shelf item" as defined in FAR Subpart 2.101;
- (ii) consistent with FAR 12.212, all commercial computer software and commercial computer software documentation are acquired by Purchaser under ABB's standard commercial software licenses;
- (iii) to the extent that any domestic preference requirements, whether Buy America Act ("BAA") (41 U.S.C. § 8301 – 8305, as amended) or Build America, Buy America ("BABA") (Pub. L. 117-263, § 58, December 23, 2022, ), or Trade Agreements Act of 1979 ("TAA") (Pub. L. 96-39, §1(a), July 26, 1979) or any other, may be applicable to this Agreement, the country of origin of Equipment is unknown, and ABB cannot and shall not be obligated to provide any certification of conformity therewith;
- (iv) there are no prevailing wage requirements attached to this Agreement; that is, (i) any Services provided by ABB are exempt from the Service Contract Labor Standards ("SCA") (41 U.S.C. § 6701 -6707, as amended) (as provided in FAR clause 52.222-41), (ii) any Services provided by ABB for the construction, alteration or repair of public buildings or public works are exempt from the Davis-Bacon Act ("DBA") (40 U.S.C. §§ 3101-9507, as amended) (as provided in FAR clause 52-222-6), and (iii) no state or other local prevailing wage laws apply;
- (v) there are no Security or Safeguarding of Covered Contractor Information Systems requirements as provided by FAR Subpart 4.0404(a) and 4.1903, respectively; that is FAR 52.204-2 and 52.204-21, respectively, do not apply to this Agreement; and
- (vi) any applicable FAR Subpart and/or provision and/or clause referenced in this Article 28 shall be as of the effective date of this Agreement.

(b) Purchaser shall notify ABB in writing, prior to the execution of this Agreement, or if this Agreement is a master ordering agreement, prior to ABB's acceptance of any purchase order submitted hereunder, if (1) any of the Services provided hereunder are subject to federal, state or local prevailing wage laws, as described in Article 28 (a)(iv) or (2) the security regulations set forth in Article 28(a)(v) apply. Purchaser shall defend, indemnify and hold ABB harmless from and against all losses, liabilities, cost, expense (including attorney's fees and expenses of litigation and/or settlement), damages, allegations, claims and causes of action arising from Purchaser's failure to notify ABB in writing in accordance with this Article 28(b).



- (c) If Purchaser is an agency of the U.S. Government, then:
  - (i) as permitted by FAR Subpart 12.302, all paragraphs of FAR 52.212-4 (except those listed in 12.302(b)) are replaced with this Agreement's terms and conditions and
  - (ii) all subparagraphs of FAR 52.212-5 apply only to the extent applicable to the sale of COTS and/or commercial items and as appropriate for the Agreement price.
- (d) If Purchaser is procuring the Equipment, Software, and/or Services as a prime contractor or subcontractor at any tier, on behalf of any agency of the U.S. Government, then FAR 52.212-5(e) or 52.244-6 (whichever is applicable) applies only to the extent applicable to the sale of COTS and/or commercial items and as appropriate for the Agreement price.
- (e) For all U.S. federal, state, and/or municipal end-user sales (collectively "U.S. Government"), Purchaser shall disclose and provide all U.S. Government contractual flowdown requirements to ABB when requesting a quote/proposal from or placing a purchase order with ABB. Purchaser shall indemnify, defend, and hold harmless ABB from and against all losses, costs, claims, causes of action, damages, liabilities, and expenses, including attorney's fees, all expenses of litigation and/or settlement, and court costs, arising from its failure to comply with this obligation.

#### **29. Data Protection.**

- (a) The parties agree that the protection of Personal Data is very important. If Purchaser discloses Personal Data to ABB, ABB shall comply with all applicable data protection laws and regulations. Purchaser shall comply with all applicable data protection laws and regulations in respect of any Personal Data it receives from ABB in the course of receiving the Equipment or Services.
- (b) The parties agree that neither will withhold or delay its consent to any changes to this clause which are required to be made in order to comply with applicable data protection laws and regulations and/or with guide-lines and order from any competent supervisory authority, and their application to the Equipment or Services from time to time, and agrees to implement any such changes at no additional cost to the other party.
- (c) The parties acknowledge that the processing of Personal Data in accordance with this purchase order may require the conclusion of additional data processing agreements or additional data protection agreements. If and to the extent such additional data processing agreements or additional data protection agreements are not initially concluded as part of the purchase order, the parties shall, and shall ensure that their relevant affiliates or subcontractors shall, upon the other's request promptly enter into any such agreement with an affiliate, as designated by the other party and as required by mandatory law or a competent data protection or other competent authority.

#### **30. Remedies.**

The remedies of the Purchaser set forth in this Agreement are exclusive and are its sole remedies for any failure of ABB to comply with its obligations hereunder.